Maine State Government
Department of Administrative & Financial Services
Office of Information Technology (OIT)

Waiver Policy

1.0 Statement

Adherence to policy, standards, and procedures is a necessary part of conducting State business. It is equally important to document the process for exceptions.

2.0 Purpose

The purpose of this policy is to document the waiver workflow and compliance-tracking.

3.0 Applicability & Definitions

This policy is applicable to all Office of Information Technology (OIT) issued policies, standards, and procedures. The following definitions are applicable to this policy:

3.1 **Approved**: A waiver has been approved by the Chief Information Officer (CIO) or authorized designee.

3.2. **Approved with Conditions**: Depending on the context of the approval, there may be conditions formally connected to the approval.

3.2 **Expired**: A waiver has exceeded the time that was approved by the CIO. Should a waiver still be required, please follow the Waiver Extension provision in this policy below.

3.3 **Modified:** A waiver that has been changed to reflect current state of conditions which can be either Minor or Significant

3.4 **Not Approved**: A waiver request was denied by the CIO or authorized designee.

3.5 **Replaced**: A waiver extension has been filed and accepted by the CIO. This waiver is no longer active and is marked "Replaced." The extension waiver will become the current waiver for the defined asset.

3.6 **Satisfied**: The CIO has approved the closure of the waiver based on evidence that explicitly shows that the waiver condition has been resolved. A waiver is a candidate for closeout if it meets the criteria specified in section 5.4 below.

3.7 **Withdrawn**: A waiver has been officially requested to be withdrawn, and the waiver is voided.

3.8 **Waiver Close Out**: A waiver which has been satisfied, or the asset has been formally decommissioned, and the associated artifacts to record detailed actions (Request for Change (RFC) and Enterprise Tickets) have been referenced to confirm the status.

4.0 Responsibilities

4.1. The Chief Information Officer (CIO) is responsible for the enforcement of this policy.

4.2. The Enterprise Architect facilitates the waiver workflow.

4.3. The Enterprise Architect must ensure that all updates are accurately reflected in the Enterprise Waiver Application Inventory to maintain accurate tracking of waivers and their associated assets.

4.4. Those seeking a waiver are not permitted to proceed with their desired outcome until they receive an email from the Enterprise Architect on behalf of the CIO indicating the waiver has been approved. There is no transfer or accepting liability by the State of Maine involving a vendor product through a waiver being submitted, reviewed and approved by the CIO.

4.5. Those seeking a waiver must ensure that the business owner identified in section 5.1.1 supports the waiver request, understands and accepts the risk, and supports the remediation strategy to achieve standard/policy compliance within the timeframe specified.

5.0 Directives

5.1. The waiver application is initiated by including any relevant documentation within an Enterprise Ticketing System ticket and detailing the answers to the following items (5.1.1 through 5.1.8) within the body of an email to OITEnterpriseArchitect@Maine.Gov (see Appendix A). Scans must be attached to an Enterprise Ticketing System ticket and noted in sections 5.1.7. or 5.1.8.

5.1.1. State the department and agency requesting the waiver and the full name(s) of the individual(s) requesting the waiver, the IT Manager approving the request to move forward, and the business owner accepting the risk identified in the waiver request.

5.1.1.1. The identified business owner must have the authority within their organization to form a binding agreement with the OIT CIO.

5.1.1.2. The identified IT Manager must be an IT Director, or a designee authorized on their behalf.

5.1.1.3. The three individuals identified as the requestor, IT Manager, and business owner must be different.

5.1.1.4. Please explicitly copy the individuals listed above in the waiver application.

5.1.2. Identify the policy or standard[1] for which the waiver is being requested.

5.1.3. Describe what risk is being waived by this request, and why the waiver is needed.

5.1.3.1. Provide the compelling technical or business justification for the policy exception.

[1] https://www.maine.gov/oit/policies-standards

5.1.3.2. Describe the impact if the waiver is not approved.

5.1.4. What are the business and technical risks to the State if the waiver is approved?

5.1.5. State the duration of the waiver.

5.1.6. All Waivers: Describe the exit strategy to satisfy the waiver and to bring the product into our standard offering and policy posture, which includes the exit strategy. Waivers must include the support model to be used until compliance is achieved.

5.1.7. Security Waivers: When requesting a security waiver, provide the following:
- 5.1.7.1. Application Inventory ID number of the application.
- 5.1.7.2. The Enterprise Ticketing System ticket number that contains a security scan no older than six months.
- 5.1.7.3. An approximate number of both internal and external users, and
- 5.1.7.4. The classification of the data transacted by the application (see the Data Classification Policy).[2]
- 5.1.7.5. If the most recent security scan is older than six months, a new scan must be requested, completed and evaluated by the Security Operations Center (SOC) team prior to submitting a waiver request.
- 5.1.7.6. Security scans completed by external parties must be submitted to the SOC team through the Enterprise Ticketing System for further evaluation.

5.1.8. Digital Accessibility Waivers: When requesting an accessibility waiver, provide the following:
- 5.1.8.1. The Application Inventory ID number of the application,
- 5.1.8.2. The Enterprise Ticketing System ticket number that contains the most recent accessibility scan, and
- 5.1.8.3. An approximate number of both internal and external users.

5.2. Approval or denial of the request will be made within three weeks of the submittal via email to the requestor and will include the individuals outlined in 5.1.1. Emergency requests will be handled in the same manner, only on an expedited scale.

5.3. Before the expiration date of the waiver period, it is expected that corrective actions would have been undertaken to convert to an accepted policy standard. All requests for waiver extensions, with justifications, must meet the minimum requirements outlined in 5.1, above.

5.3.1. If requesting a waiver extension, the request must cite the waiver number, title of the most-current waiver, and describe all progress toward

[2] https://www.maine.gov/oit/sites/maine.gov.oit/files/inline-files/DataClassificationPolicy.pdf

remediation that was made during the previous authorized waiver period. If remediation was not achieved, explain why.

5.4 A Waiver is a candidate for closeout if either:

5.4.1 The underlying waived condition has been remediated, and the purpose of the waiver has been satisfied (see Applicability & Definitions, 3.0, above).

5.4.2 The underlying information asset has been decommissioned.

To request the closeout of a waiver, the requester must formally notify the Enterprise Architect that the waiver is no longer necessary, and the asset owner must confirm the current status of the asset. The requester is responsible for providing the following items to the Enterprise Architect through the formal email box OITEnterpriseArchitect@Maine.Gov:

5.4.3 The Waiver number.

5.4.4 The asset name.

5.4.5 The documentary evidence behind the closeout request.

5.4.4.1. The most common documentary evidence is the reference to a Request for Change (RFC) number or a ticket in the Enterprise Ticketing System.

6.0 Document Information

6.1. Initial Issue Date: February 22, 2010

6.2. Latest Revision Date: May 15, 2026

6.3. Point of Contact: PolicyTeam.OIT@Maine.Gov

6.4. Approved By: Chief Information Officer, OIT

6.5. Legal Citation: Title 5, Chapter 163: Office of Information Technology[3].

6.6. Waiver Process: N/A

[3] http://legislature.maine.gov/statutes/5/title5ch163sec0.html

Appendix A: **Sample of Required Information Table for Waiver Requests.** (This can be copied and pasted into the body of an email to: OITEnterpriseArchitect@Maine.Gov)

Bold: Required Information | Plain text: Example (for reference)

5.1.1 Department, Agency, Requestor, IT Manager, and Business Owner:

Department: Department of X

Agency: Bureau of Administrative Systems

Requestor: Jane Doe, IT Analyst, Dept. of X

IT Manager: John Smith, IT Director

Business Owner: Sarah Johnson, Deputy Commissioner, Dept. of X

5.1.2 Policy or Standard Provision Impacted:

Identification Authentication Policy – Section 8.1.4. (Multifactor Authentication Requirement)

5.1.3 Justification:

Legacy payroll system cannot support MFA; denial would delay payroll processing.

5.1.4 Risks:

Increased risk of unauthorized access; mitigated by enhanced monitoring and restricted access.

5.1.5 Duration:

6 months (Jan 1 – Jun 30, 2026)

5.1.6 Exit Strategy:

Vendor upgrade scheduled for Q2 2026; support team will provide temporary monitoring until replacement.

5.1.7 Security Waivers:

App ID: 789; Assyst #654321;

120 internal / 40 external users;

Data: TLP Amber

5.1.8 Accessibility Waivers:

Assyst #987654; 75 internal / 300 public users